

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUBT045643: HARLAN WERNER, et al. vs ALYSSA CROSBY, AS EXECUTOR
OF THE WILL OF DANIEL CROSBY, DECEASED**

07/16/2026 in Department 21

Motion to Compel COMPLIANCE WITH FIRST REQUEST FOR INSPECTION

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) SPS-Art Incorporated’s Motion to Compel Compliance with First Request for Inspection (*Opposed*)

Tentative Ruling:

Plaintiff/Cross-Defendant SPS-Art Incorporated’s motion to compel compliance with First Request for Inspection No. 1 is GRANTED in part and DENIED in part.

Defendant/Cross-Complainant Alyssa Crosby shall cooperate with a controlled forensic inspection of the spsart2@aol.com account. The motion is denied to the extent SPS seeks direct, unrestricted access to the entire account or its login credentials.

The parties are ordered to meet and confer either in person, over the telephone or via videoconference regarding the scheduling of the forensic inspection of the spsart2@aol.com email account. At least 3 days prior to the meet and confer session, Plaintiff is to provide Defendant with a list of search terms and categories of data to be used during the inspection. To the extent Defendant has retained a forensic expert, the Defendant’s forensic expert shall be permitted to be present, along with Defendant and Defense counsel, for the entire duration of the inspection to observe the inspection process. Defendant and/or Defendant’s expert shall access the email account without providing the credentials directly to Plaintiff or Plaintiff’s expert. The parties shall also meet and confer on a protective order addressing any non-relevant and private information contained in the email account that might be accessed by way of this inspection.

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This meet and confer shall be completed within 15 days of the date of this ruling. The inspection shall be completed within 45 days of the date of this ruling.

The parties' requests for sanctions are DENIED.

SPS did not request sanctions in its notice of motion or supporting papers. Crosby's sanctions request appears only in the caption and does not identify the statutory basis, amount requested, persons against whom sanctions are sought, or supporting fees and costs as required by CCP § 2023.040.

Sanctions are also unwarranted on the merits. SPS was substantially justified in seeking an inspection because the account was used for business and questions remained regarding missing or deleted emails. Crosby was substantially justified in opposing unrestricted access based on legitimate scope and privacy concerns. Given the mixed result, an award of sanctions would be unjust.

Counsel for Plaintiff is to give notice within two (2) court days.

Discussion:

1. Evidentiary objections

Bradley Tyer Declaration

Objection No. 1 is SUSTAINED IN PART and OVERRULED IN PART. The hearsay objection is overruled. The personal-knowledge objection is sustained to the extent Tyer asserts Daniel Crosby personally owned the laptop.

Objection No. 2 is SUSTAINED IN PART and OVERRULED IN PART. The hearsay objection is overruled. The speculation and personal-knowledge objections are sustained as to Plaintiffs/Cross-Defendants' alleged motives, anticipated conduct, bad faith, and the conclusion that all relevant information had already been produced.

Objection No. 3 is SUSTAINED IN PART as to opposing counsel's motives, anticipated conduct, and the conclusion that all relevant information had been produced.

Objection No. 4 is SUSTAINED.

Lara Shapiro Declaration

Objection No. 5 is SUSTAINED IN PART and OVERRULED IN PART. It is overruled as to the volume and form of the production and whether Plaintiffs/Cross-Defendants identified particular missing emails or categories of information. It is sustained as to assertions of bad faith, improper motive, oppression, defamation, and intent to cause emotional distress.

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Objection No. 6 is SUSTAINED IN PART and OVERRULED IN PART. The hearsay objection is overruled. The speculation and personal-knowledge objections are overruled as to Shapiro's participation in the production and meet-and-confer process, but sustained as to Plaintiffs/Cross-Defendants' subjective beliefs, motives, intent, and anticipated conduct.

Alyssa Crosby Declaration

Objection No. 7 is SUSTAINED IN PART and OVERRULED IN PART. Crosby may testify that she received the communication, but Maggie Gaffney's statement is inadmissible for the truth of the technical assertion that the phone could not be accessed.

Objection No. 8 is SUSTAINED IN PART and OVERRULED IN PART. The email chain is authenticated as a communication received and forwarded by Crosby, but Gaffney's technical conclusions are hearsay and are not competent proof that access was impossible.

Objection No. 9 is SUSTAINED IN PART and OVERRULED IN PART. Crosby may describe her own concerns and emotional reaction, but it is argumentative to characterize the opposing party's conduct as defamation or intentional infliction of emotional distress.

Objection No. 10 is SUSTAINED IN PART as to Crosby's legal conclusions concerning defamation and litigation privilege.

Objection No. 11 is SUSTAINED.

Objection No. 12 is SUSTAINED IN PART as to opposing counsel's drafting process, motives, and intentions.

Objection No. 13 is SUSTAINED IN PART. Crosby may describe her own privacy concerns, but the remainder is argumentative.

Objection No. 14 is SUSTAINED IN PART as to predictions of future conduct, opposing counsel's motives, and the contents of the phone beyond Crosby's personal knowledge.

2. Motion to compel compliance

SPS has shown good cause. The account was used for SPS business; the litigation concerns Daniel Crosby's handling of corporate finances; some relevant emails from that account appeared among the laptop materials; and the parties gave differing accounts about whether the AOL account had been accessed and whether its contents had been deleted.

These facts establish a reasonable relationship between the account and the disputed financial conduct and justify determining whether additional or recoverable business emails exist. The 12,000-page laptop production does not necessarily establish that the locally downloaded emails included the account's complete contents or server-side deletion information. A fact-specific showing of relevance satisfies the good-cause requirement and shifts the burden to the

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responding party to justify its objections. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 97-98.)

The CCP § 2031.030(c)(1) objection is overruled. The demand identifies a specific account and describes the requested forensic activity: reviewing its contents, deleted materials, and deletion data. This is sufficiently particular to identify the ESI to be inspected. The burdensome objection is also inadequately supported because Defendant presents no evidence concerning the cost, difficulty, or technical burden of seeking access through AOL. The fact that the objections-only response was unverified is not independently defective; a response containing only objections need not be verified.

The privacy and overbreadth objections are, however, valid as to the proposed manner and scope of inspection. The demand would give SPS's forensic technician direct access to the entire account, including all personal, family, medical, and potentially privileged communications, without a date limitation, subject-matter restriction, or advance screening procedure. Identifying one account does not make unrestricted examination of everything in it reasonably tailored. Discovery must be calibrated to the issues rather than operate as a blanket demand. (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 221-225.)

TBG Insurance Services Corp. v. Superior Court does not eliminate those concerns. There, the employer owned the computers and the employee had expressly agreed that they could be monitored. No comparable ownership or monitoring agreement is established here. Moreover, even assuming Daniel Crosby's own personal privacy claim did not survive his death, living correspondents (Defendant/Cross-Complainant and her children) may retain informational privacy interests in their communications. Privacy interests require a contextual balancing of the seriousness of the intrusion, the need for discovery, and available safeguards. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35-37.)

In sum, the motion is GRANTED in PART and DENIED in PART as described above.

Counsel for Plaintiff is to give notice within two (2) court days.